

State of California (2024) 16 Cal.5th 588, 597.) The test does not rely on intentions or contractual labels but instead focuses on specific criteria to classify a worker as an independent contractor. Section 2775 does not exempt workers' compensation cases. Any judicially created standard does not override the statutory framework in Section 2775 to determine employment status under the Labor Code. This encompasses all relevant sections of the Labor Code, including those related to the workers' compensation exclusivity rule and dual employment situations.

Parties shall provide supplemental briefing to address this statutory presumption, which, in the Court's view, may negate the importance of the following factual questions: (1) whether parties contemplated the length of the assignment (see Additional Material Fact No. 15), (2) plaintiff's "consent" to designation as "employee" of John Muir (see Additional Material Fact Nos. 17-18), and (3) any labels in John Muir's contract with Cross Country designating providers supplied by the agency as either employees or independent contractors (see Additional Material Fact No. 19, 22).

The hearing is continued to April 22, 2026. John Muir's supplemental brief (not to exceed ten double-spaced pages) shall be due and e-filed no later than March 25, 2026. Plaintiff's responsive brief (not to exceed ten double-spaced pages) shall be due and e-filed no later than April 8, 2026. Any reply (not to exceed five double-spaced pages) shall be due and e-filed on April 15, 2026. No additional evidence shall be submitted.

15. 9:00 AM CASE NUMBER: C25-00687
CASE NAME: MIHAELA CROSSMAN VS. GREG WALLACE
***HEARING ON MOTION IN RE: SET ASIDE VOID DEFAULT AND QUASHING SUMMONS FOR LACK OF PERSONAL JURISDICTION**
FILED BY: WALLACE, GREG
TENTATIVE RULING:

Plaintiff Mihaela Crossman dismissed this case without prejudice on March 3, 2026. This Motion to set aside Default and Quashing Summons is vacated. The CMC, Line 2, is also vacated. No appearance is required at the hearing on March 11, 2026.

16. 9:00 AM CASE NUMBER: C25-00711
CASE NAME: ROBERT MURLEY VS. ROBERT RICHIE
***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL RE: SOFIA MINASSIAN, ESQ.**
FILED BY: MURLEY, ROBERT JACK
TENTATIVE RULING:

This Motion is moot. Plaintiff's counsel, Sofia Minassian, Esq. of the Sedaghat Law Group filed a motion to be relieved as Counsel on November 14, 2025. However, on February 24, 2026, the same law firm served notice of change of handling attorney representing Plaintiff Robert Murley. The hearing on this motion is vacated. No appearance is required at the March 11, 2026 hearing.

17. 9:00 AM CASE NUMBER: C25-03466
CASE NAME: TUNED IMPORTS B.V., VS. ALL WEST COAST SHIPPING, INC.,
HEARING IN RE: THE EX PARTE APPLICATION FOR OUR MOTION TO BE RELIEVED AS COUNSEL
FILED BY:

TENTATIVE RULING:

Summary

Defendant's counsel, Commins Knudsen and Chao, APC, by and through David H.S. Commins, Esq., filed a Motion to Be Relieved as Counsel for Defendant All West Coast Shipping, Inc. ("Motion"). The Motion is **granted** as set forth herein.

The Court scheduled the Case Management Conference to trail this Motion. Counsel are ordered to appear for the Case Management Conference at 9:00 a.m. in Department 16.

Background

This is a business tort and unfair business practice case related to a dispute about import and storage of 26 vehicles owned or held by Plaintiff Tuned Imports B.V. for third parties against Defendant All West Coast Shipping, Inc.

Defendant's Counsel represents to the Court that there has been a breakdown in the attorney client relationship with his client, All West Coast Shipping, Inc., which renders representation ineffective. Specifically, Alex Naumov, Chief Operating Officer of Defendant All West Coast Shipping (WCS) sent counsel correspondence expressing his desire that his firm cease to represent WCS and instructing them to communicate to the Court that my firm no longer represented WCS. On January 14, 2026, Defendant's Counsel filed this Motion to Withdraw.

Analysis

Cal. Rules of Court Rule No. 3.1362 and Cal. Code of Civ. Proc. §§284(1) and (2) sets forth the standard and procedure to be relieved as counsel of record. The Code permits an attorney to be changed at any time before or after judgment or final determination "upon the consent of both client and attorney," or "upon order of the court, upon the application of either client or attorney, after notice from one to the other." Defendant's Counsel has complied with the provisions of this rule and statute providing notice to Plaintiff and supporting this motion with a declaration articulating the reasons for withdrawal.

The Court finds that there is good cause to grant this Motion to relieve Defendant's Counsel. The Court acknowledges that the prejudice to Defendant exists. While this case was filed in 2025 and no trial date has been set, Defendant is required retain counsel to comply with the Court's orders.

Ruling

After reviewing the papers and arguments submitted by counsel and after considering and weighing the prejudice to both sides, and reviewing the relevant statutory and decisional authority, the Court finds that there is good cause to grant the Motion of Plaintiff's Counsel to be Relieved as Counsel of Record. The makes the following orders:

1. This motion is **granted**.
2. The Court will execute the Proposed Order Granting Attorney's Motion to be Relieved as Counsel (Judicial Council Form MC-053) as submitted on January 14, 2026. The withdrawal is effective immediately.
3. Defendant's Counsel is ordered to serve a copy of this Order (MC-053) to Defendant by mail at its last known address, along with a change of address form, Judicial Council Form MC-040, instructing the client to fill-out and file the change of address form with the Court.
4. Defendant's counsel shall file a proof of service form indicating that the client was served with the Court's Order (MC-053) and the Change of Address form (MC-040).

18. 9:00 AM CASE NUMBER: MS5031

CASE NAME: PETITION OF: PARAQUAT CASES

HEARING ON DEMURRER TO: COMPLAINT

FILED BY: CHEVRON U.S.A. INC

TENTATIVE RULING:

Summary

Defendants Chevron U.S.A. Inc., Syngenta AG, Syngenta Crop Protection LLC and Wilbur-Ellis Company LLC (collectively, "Chevron Defendants" Special Demurrer to the complaint filed in *Laster et al. v. Syngenta AG et. al*, Case No. CGC-25-631013, and Contra Costa County Case No. MS5031, is **sustained** without leave to amend. No timely opposition was filed by any other party to this case. No appearance is required at the March 11, 2026 hearing.

Background.

On January 16, 2026, the Chevron Defendants filed a Special Demurrer in this action on the grounds that there is a "misjoinder of parties" pursuant to Cal. Civ. Code §§ 378 (a)(1) and 430.10. Chevron Defendants claim that sixteen (16) Plaintiffs are improperly joined in one complaint because their claims do not arise out of the same transaction, occurrence, or series of transactions under Section 378. Even if joinder were proper, Chevron Defendants requests that this court exercise its discretion to require the 16 Plaintiffs to file separate complaints. This Motion was supported by Notice, Memorandum of Points and Authorities, and Request for Judicial Notice. The Request for Judicial Notice is granted.

No timely opposition was filed.

Analysis

California Rules of Court, Rule 8.54(c) states, "A failure to oppose a motion may be deemed a consent to the granting of the motion."; see *Cravens v. State Bd. of Equalization* (1997) 52 Cal. App. 4th 253, 257; *Gwaduri v. I.N.S.* (9th Cir. 2004) 362 F.3d 1144, 1146 [Where a party fails to file timely opposition to a motion, it is "well-within" the court's discretion to determine that such failure is "tantamount to a concession that its position in the litigation was not substantially justified."] (citing *Weil v. Seltzer*, 873 F.2d 1453, 1459 (D.C. Cir. 1989) [holding that a party who fails to file an opposition to a motion is deemed to have waived opposition and may not be heard to complain.]; see also *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes